

DAVID LOPEZ; ET AL. vs. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-09816

Defendant's Motion for Judgment on the Pleadings; Defendant's Motion to Strike

TENTATIVE RULING

Defendant AMERICAN HONDA MOTOR CO., INC. moves for judgment on the pleadings against Plaintiffs DAVID LOPEZ and ANTONIO LOPEZ's complaint alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d), (2) violation of subdivision (b) of the same, (3) violation of subdivision (a)(3) of the same, (4) breach of the implied warranty of merchantability pursuant to Civil Code section 1791.1, and (5) fraudulent inducement. Plaintiffs allege they obtained a 2018 Honda Accord (the "Vehicle"), manufactured and warranted by Defendant, in 2018. The Vehicle contained defects, most notably including a defective sensory and automatic braking system, that Defendant concealed from Plaintiffs.

Defendant simultaneously moves to strike the complaint's punitive damages allegations and prayer.

Legal Standard. A defendant may move for judgment on the pleadings on the basis that the complaint against him does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subds. (b)-(c).) The grounds for such a motion must appear on the face of the pleadings or from judicially noticeable materials. (Code Civ. Proc., § 438, subd. (d).) The standard for granting a motion for judgment on the pleadings is essentially the same as that for sustaining a general demurrer: that is, whether the pleadings and matters judicially noticeable reveal that a party is entitled to judgment as a matter of law. (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) As with a demurrer, then, a court considering a motion for judgment on the pleadings accepts as true all properly pleaded facts of a complaint but does not accept as true mere conclusions or deductions of fact or law. (*Greif v. Sanin* (2022) 74 Cal.App.5th 412, 426.) Admissions contradicting the allegations of the party making the admissions are properly considered on a motion for judgment on the pleadings. (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.)

Statutes of Limitation. Commercial Code section 2725 states that a breach of warranty claim must be commenced within four years of accrual, with accrual occurring at tender of delivery unless the warranty explicitly extends to future performance of goods and discovery of the breach must await the time of such performance. In that excepted case accrual occurs when the breach is or should have been discovered. Plaintiffs allege that the Vehicle had a three-year / 36,000-mile warranty. (Complaint at ¶ 7, Exhibit A.) This is a warranty that extends to the future performance of goods, per *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205. Plaintiffs' claims based on the express warranty, being their first three, are all subject to delayed discovery rules.

Likewise, the implied warranty claim Plaintiffs bring has a four-year statute of limitations and can have its date of breach be a delayed discovery after the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304-1306.)

A cause of action sounding in fraud has a three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d).) The delayed discovery doctrine is well-known to apply to causes of action sounding in fraud. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.)

However, Plaintiffs do not state facts supporting application of delayed discovery doctrine to any of their claims. Plaintiffs present only conclusory allegations that they discovered the breach of warranty when Defendant was unable to conform the Vehicle to warranty after a reasonable number of repair attempts. (Complaint at ¶ 14.) Plaintiffs plead no facts showing that the Vehicle was taken to Defendant for repairs and that problems existed before and after the repair attempts. They plead that the Vehicle suffered sensing defects, transmission defects, engine defects, and electrical defects and in the context of their later allegations explaining that vehicles of the Vehicle's make, model, and year have a serious defect in their automatic road condition sensors and automatic braking systems this is sufficient to state the Vehicle at some point did not conform to warranty; but they do not state facts showing Defendant's inability to conform the Vehicle to warranty after a reasonable number of repair attempts. (*Id.* at ¶¶ 11, 46-48.) Therefore they do not state facts supporting their claim that they discovered Defendant breached its warranty at a date later than the 2018 purchase of the Vehicle.

Plaintiffs' claims as presented are all time barred.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." This means that a plaintiff's pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means

intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code, § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiffs’ causes of action being time barred, they do not sufficiently state any cause of action that can support imposition of punitive damages.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) The court finds Plaintiffs demonstrate a reasonable possibility that amendment can cure identified defects.

Conclusion. Defendant’s motion for judgment on the pleadings is granted with leave to amend. Defendant’s motion to strike is granted with leave to amend.

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